



Harbours (Scotland)

Act 1982

1982 CHAPTER 17

An Act to make provision for Scotland for establishing harbour trusts to hold, manage and maintain harbours and for the transfer of harbours held and maintained by the Secretary of State to such trusts; and for connected purposes. [27th May 1982]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Secretary of State may by order establish a trust to hold, manage and maintain a harbour transferred to it under subsection (2) below. Establishing of harbour trusts and transfer of harbours to them.

(2) The Secretary of State may by order transfer to a harbour trust a harbour (or part thereof) which is held and maintained by him and with that harbour all such rights enjoyed by and liabilities incumbent on him in relation thereto as he considers should be so transferred.

(3) A transfer made by the Secretary of State under subsection (2) above shall be subject to such terms and conditions as the Secretary of State may decide and may be made either with or without any valuable consideration being paid in respect of the transfer.

(4) A harbour trust shall be the harbour authority in relation to a harbour transferred to it under subsection (2) above.

Orders. **2.** An order made under section 1 of this Act shall be made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament and may contain such transitional, incidental, supplementary and consequential provisions as the Secretary of State may consider necessary or expedient.

Interpretation. **3. In this Act—**
 “harbour” has the same meaning as in section 1 of the
1972 c. 64. Harbours Development (Scotland) Act 1972;
 “harbour authority” has the same meaning as in the
1964 c. 40. Harbours Act 1964; and
 “harbour trust” means a trust established under section
 1(1) of this Act.

Citation and extent. **4.—(1)** This Act may be cited as the Harbours (Scotland) Act 1982.

(2) This Act extends to Scotland only.